

Submission on Proposed Amendments to the Biosecurity Act 1993

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SUBMITTER DETAILS

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Introduction

1. This is a submission by the Environmental Defence Society (**EDS**) on proposed amendments to the Biosecurity Act 1993 (**Act**) as set out in the Ministry for Primary (**MPI**) Industries' Discussion Documents.¹
2. EDS is an apolitical, not-for-profit organisation dedicated to achieving improved outcomes for New Zealand's environment. It is active as a legal watch-dog, policy think tank, and conference organiser.
3. EDS has an extensive history advocating for positive environmental outcomes for indigenous biodiversity in Aotearoa New Zealand. It has produced several publications that discuss the interface between the Act and protection of indigenous biodiversity, including *Conserving Nature: Conservation Reform Issues Paper*;² *EDS Independent Review of the Conservation Management Planning System*;³ *Reform of the Wildlife Act 1953: An Opportunity for Transformational Change of Aotearoa New Zealand's Biodiversity Law*;⁴ and *Restoring Nature: Reform of the Conservation Management System*.⁵
4. EDS supports reform of the Act. It is important that law designed to stop biosecurity incursions, and manage responses, is modern and up to date. As set out in the Overview Discussion Document, the Act plays an important role in safeguarding New Zealand's trade, primary production, tourism and indigenous biodiversity.

¹ <https://www.mpi.govt.nz/consultations/proposed-amendments-to-the-biosecurity-act/>

² Koolen-Bourke D and R Peart (2021) *Conserving Nature: conservation reform issues paper*, Environmental Defence Society, Auckland

³ Koolen-Bourke et al (2023) *Independent Review of the Conservation Management Planning System*, Environmental Defence Society, Auckland

⁴ Koolen-Bourke et al (2023) *Reform of the Wildlife Act 1953: An Opportunity for Transformational Change of Aotearoa New Zealand's Biodiversity Law*, Auckland

⁵ Koolen-Bourke et al (2024) *Restoring Nature: Reform of the Conservation Management System*, Auckland

5. However, EDS considers that the proposed changes need to go further to appropriately recognise and respond to threats to indigenous biodiversity. This submission addresses that overriding imperative under the following topics:
 - a. The role of the biosecurity system in protecting indigenous biodiversity
 - b. Provide clearer guidance and prioritisation for indigenous biodiversity from biosecurity threats
 - c. Long-term management
 - d. Enable a bespoke funding model for indigenous biodiversity
 - e. Other proposals that EDS supports
 - f. General biosecurity duty

The role of the biosecurity system in protecting indigenous biodiversity

6. The biosecurity system plays a critical role in protecting New Zealand's indigenous species and ecosystems from the threat posed by new biosecurity incursions, and ensuring that the adverse effects of pests and harmful organisms already present are reduced, eliminated and effectively managed.
7. Aotearoa New Zealand has the highest proportion of threatened species in the world, with around 4,000 species threatened or at risk of extinction.⁶ We also have the second-highest recorded number of invasive species, and introduced species are recognised as one of the most significant threats to our native species and ecosystems.⁷
8. Thousands of exotic species are now present, many more arrive each year, and some constitute a significant risk to indigenous biodiversity. Well known examples include, wilding conifers (primarily *Pinus Radiata* and *Douglas Fir*), introduced mammals such as possums, wallabies, stoats and deer and invasive wasp species. Two species of exotic *Caulerpa* (*Caulerpa brachypus* and *Caulerpa parvifolia*) are currently causing widespread damage to indigenous biodiversity and ecosystems. Some organisms, like Kauri dieback disease (*Phytophthora agathidicida*), pose a threat to iconic and treasured taonga species and others, such as high pathogenicity avian influenza (HPAI), have the potential to have even more substantial and widespread impacts if (and when) they arrive on our shores.
9. Climate change is set to exacerbate these risks, creating new pathways for invasive species and increasing the complexity and scale of the management task. It is crucial that a clear and effective pest management and biosecurity framework is in place to enable agencies to respond at pace to threats to our indigenous biodiversity, to coordinate and integrate that response, and ensure they have the necessary support (in particular funding) to do so effectively.
10. At present, while the biosecurity and pest management framework to protect the primary sector is consolidated and coherent, the tools and framework to address biosecurity threats to indigenous biodiversity are underdeveloped. The mechanisms in place are fragmented, spread across multiple laws (eg Wildlife Act, Wild Animal Control Act and the Act) that are unaligned and uncoordinated, often undermining rather than supporting an effective biosecurity response and impeding cross agency cooperation in this area.

⁶ Joy M and Mclean S (2019), Biodiversity crisis in Aotearoa New Zealand', New Zealand Sustainable Development Goals, 15 April 2019, Te Mana o te taiao: Aotearoa New Zealand biodiversity strategy 2020, Department of Conservation, Wellington

⁷ Ministry for the Environment & Stats NZ, New Zealand's environmental reporting series: Environment Aotearoa 2022, 2022, at 22

11. EDS is pleased to see that some changes have been recommended to improve this situation; however, we consider the changes need to go further. Reform of the Act provides an opportunity to make significant improvements in this area that are urgently needed. Downstream, these changes would also help prepare the ground for more substantive reform of the now 70 year old Wildlife Act.⁸
12. The underdeveloped nature of the threat and pest management mechanisms in the conservation system, and limited application of those that do exist under section 41 of the Wildlife Act (that cannot be applied to microorganisms, fish, plants and invertebrates which do not fall within the definition of “wildlife”) means that the Act is the primary, and in many instances the only, tool for managing an array of invasive species that threaten imperilled indigenous biodiversity.
13. However, the Act was not designed with the protection of indigenous biodiversity front of mind and its effectiveness at operating in that area is impeded in a number of ways:
 - a. The purposes provisions in the Act generally are underdeveloped and fail to identify overarching national priorities, including the protection of indigenous biodiversity, prevention of extinction and conservation objectives broadly.
 - b. The Act does not recognise the role, functions or expertise of the Department of Conservation (**DOC**) or provide DOC with an ability to easily access and utilise its tools. This creates significant inefficiencies and costs, it contributes to delays in action that can prevent early intervention and undermine the effectiveness of our response. It means that the biosecurity system often fails to capture and utilise the expertise and experience DOC holds, struggles to identify and appropriately assess risks to biodiversity, and trigger an effective management response.
 - c. In order for Pathway Management or Pest Management Plans to be approved the Act requires that “the benefits of the plan outweigh the costs”. Although non-monetary costs and benefits can be incorporated into this analysis, the costs and benefits associated with protecting indigenous species or native ecosystems, and the ecosystem services they provide are far less amenable to valuation. Where trade-offs must be made and competing interests exist these assessments are highly complex. Current legislative and policy direction provides insufficient direction to guide decision making in this context, and the regime presumes affected parties exist both to help initiate action and contribute to the costs of management and control. This is often not the case for indigenous biodiversity. In practice, cost and funding often prevail over other considerations, this can act as a barrier to action and undermine a precautionary approach.
 - d. These issues are highlighted in EDS’s *Conserving Nature* report through short case studies of the biosecurity system’s response to both kauri dieback disease and the invasive white butterfly *Pieris brassicae* (see summary below). These examples demonstrate the complexity of calculating the benefits of eradication and the true costs of losing iconic species like Kauri, whose value is much more than the price of its timber. They also highlight the very different cost-benefit assessments produced depending on the lens applied by the lead agency, the priority accorded to protecting indigenous biodiversity and the approach to risk that is adopted.

⁸ <https://www.doc.govt.nz/about-us/our-role/legislation/review-of-the-wildlife-act-1953/>

Case study on *Pieris brassicae*⁹

In *Conserving Nature*, EDS detailed the management response of an invasive white butterfly (*Pieris brassicae*) that posed a risk to a number of indigenous brassica species. The eradication response under the Act was initiated by MPI but was subsequently terminated when the expected benefit to cost ratio was calculated, and the benefit was viewed as too small. Conversely, DOC's risk assessment and cost benefit analysis of the same organism, but through a biodiversity protection lens, provided a clear mandate for action. Once the lead role was transferred to DOC (an agency with the necessary expertise and understanding of the technical issues), the invasive butterfly was eradicated, making Aotearoa New Zealand the first country to achieve this.

14. Reform of the Act is an opportunity to address these problems, and create a more effective and efficient framework that provides robust protection for indigenous biodiversity.

Provide clearer guidance and prioritisation for indigenous biodiversity from biosecurity threats

Purpose clause in the Act (Proposals 1 and 2)

15. EDS supports introduction of an overarching purpose clause in the Act. Purpose clauses set the direction of laws and play an important role in statutory interpretation.
16. EDS considers that any new purpose clause needs to specifically prioritise the protection of indigenous biodiversity, and not just list it among other relevant considerations as proposed in the System-wide Issues Discussion Document. At the very least, the protection of indigenous biodiversity should be afforded equal weighting in a purpose clause to the protection of New Zealand's economic interests.
17. This express and prominent direction is necessary. To date, impacts on indigenous biodiversity have not been prioritised. This is largely because the Act is focussed primarily on economic considerations. If changes to the Act do not elevate the protection of indigenous biodiversity it will continue to be sidelined and traded off against other considerations.

Ministerial role: strengthen the role of the Minister for Conservation (not currently proposed)

18. The Minister for Conservation currently holds no leadership role within the biosecurity system, despite having overarching responsibility for protecting indigenous biodiversity and native ecosystems.
19. Although MPI may assign responsibility for pest management decisions to other agencies (under Part 5 of the Act), including DOC, in practice this has not occurred very often, generally takes some time to determine and leads to critical delays.
20. It is important that the Minister of Conservation, and by extension DOC, can effectively access the tools and resources available under the Act and, conversely, that our biosecurity response is able to take full advantage of the experience and expertise they bring in relation to invasive species management. This is essential where there is a significant threat to indigenous biodiversity and our native ecosystems are at risk. These reforms provide an opportunity to

⁹ Koolen-Bourke, D and Peat, R (2021), *Conserving Nature: Conserving Reform Issues Paper*, Auckland, at 136

better define the role and function of the Minister of Conservation and DOC to strengthen the system's response, streamline this process and create efficiencies.¹⁰

21. For example, NIWA has reported that *Caulerpa* species tends to outcompete native seaweeds, seagrasses, smother shellfish bed and reduce fauna diversity, posing a significant risk to marine ecosystems.¹¹ Given the potential threats posed by *Caulerpa* to indigenous marine biodiversity, we see a compelling case for DOC to play a key role in its monitoring and management.
22. EDS recommends consideration be given to the benefits of assigning the Minister of Conservation, in a concurrent capacity, the role of "responsible Minister" under the Act, even for selected aspects only, such as for the purposes of Part 4.

Local knowledge in decision making (Proposal 4)

23. EDS considers that local knowledge, including *mātauranga Māori*, has the potential to result in better informed biosecurity decisions, particularly when it comes to protecting indigenous biodiversity from incursions.
24. We support incorporating local knowledge into decision-making processes for surveillance and prevention in particular because:¹²
 - a. Local observations offer insights to specific characteristics of a location, including the health of an environment and/or, presence of disease and pathogens.
 - b. It can contribute to a broader repository of information, forming a national network that reflects an ecosystem's health.
25. However, caution must be applied to the use of local knowledge in biosecurity decisions. Local knowledge could include information from stakeholders with a vested interest in the outcome of the decision. It could also unnecessarily delay decisive decision making.
26. Therefore, EDS considers it critical that in the event of a conflict between the two sources of information, scientific knowledge must prevail.

Interaction with the Freshwater Fisheries Regulation 1983 (Proposals 64 - 67)

27. EDS supports proposal 64 and considers it appropriate that the Act take precedence over sport fishing provisions in the Conservation Act and its freshwater fisheries regulations. Proposals 65 to 67 add an unnecessary layer of bureaucracy and uncertainty to the interface and are not supported.
28. Regional councils should have greater autonomy to manage pest fish in regional pest management plans. Pest fish have an adverse effect on threatened species, indigenous plants, water quality and Māori cultural values. Their management and control are essential for the protection of indigenous biodiversity, an outcome which should outweigh retention of pest fish for recreational purposes.

¹⁰ Koolen-Bourke, D et al (2024) Restoring Nature: Reform of the Conservation Management System, Auckland, at 85

¹¹ <https://niwa.co.nz/news/marine-invader-caulerpa-triggers-biosecurity-response>

¹² See for example Wood. W et al, *Mātauranga Māori framework for surveillance of plant pathogens*, Frontiers in Forests and Global Change, 7, 2024 at 3

29. The Surveillance and Legislative Interfaces Discussion Document sets out conditions that must be met for the precedence to have an effect. That “the fish is causing harm to environmental, amenity, recreational, cultural and economic values” is too broad and includes conflicting values. In some cases, a fish species may present a significant threat to environmental or cultural values, while still being perceived to hold recreational value. This point of difference between sports fishers and other stakeholders, such as environmental groups, regional councils and iwi, is already stymieing control of pest fish that are impacting indigenous biodiversity in some areas.
30. As set out in EDS’s recent publication *Restoring Nature*, the biosecurity system lacks clear statutory levers to prioritise the protection of indigenous freshwater fish, even when these species are threatened by introduced sportfish, which have a statutory advocate and enhancement mandate.¹³ In this context, it is important that the Act clearly delineates its precedence.
31. The purpose of given precedence to the Act is to eliminate any argument between recreational and biosecurity imperatives. EDS considers that the condition should instead read “the fish is causing harm to environmental and ,~~amenity, recreational,~~ cultural and economic values”. This language reflects the values that are adversely effected by pest fish.

Surveillance and interaction with the Marine Mammals Protection Act (Proposals 68 and 69)

32. EDS supports proposal 68, emphasising the critical need for robust and timely surveillance activities targeting different type of organisms already present in the country but not classified as unwanted. This change would enable quick and effective responses against emerging diseases.
33. Surveillance powers of unwanted organisms is an important biosecurity function that can prevent incursions and/or their spread. However, EDS does not support proposal 69 which would give the Act’s surveillance activities a blanket override of the Marine Mammals Protection Act 1978 (**MMPA**). A more nuanced approach is required.
34. DOC holds the necessary knowledge and expertise on marine mammal species to lead surveillance activities that have the potential to impact these species. Rather than a total override, faster decision-making could be achieved by:
 - a. Assigning the surveillance activity to DOC; or
 - b. Removing the need for a permit, but requiring DOC’s input and comment before undertaking the surveillance activity.

Long-term management

Pest and pathway management and small-scale management programmes (Proposals 44 – 49)

35. EDS supports efforts to streamline and speed up biosecurity management planning (and therefore responses), consolidate funding levies, and devolve biosecurity exemption decisions as set out in proposals 44 to 51.

¹³ Koolen-Bourke et al (2024) *Restoring Nature: Reform of the Conservation Management System*, Auckland, at 81

Enable more than one entity to share management agency responsibilities (Proposal 49)

36. EDS supports proposal 49, which would enable greater coordination between parties, particularly MPI and DOC. The proposal should explicitly establish clear criteria for allocating responsibilities to each agency, based on their expertise, capacity, and the type of biosecurity threat that an organism or disease may pose to the respective domain (whether primary industry or conservation).
37. Establishing clarity in responsibilities is essential for driving more targeted, timely and effective biosecurity responses. The initial management of Kauri Dieback disease serves as an example of how a lack of clear roles can lead to fragmented and ineffective actions.

A 2019 review of the Kauri Dieback programme led by MPI in collaboration with a number of partners, including DOC, found that the management and governance arrangements had contributed to the failure to mitigate or stop the spread of the disease. A lack of consensus and clarity on leadership delayed the development of a national pest management plan, leading to years of inaction. This resulted in an inconsistent and ad hoc approach to the issue.¹⁴

38. Greater collaboration between MPI, DOC and regional councils can also be achieved through establishing an emerging risks team, as recommended by the Parliamentary Commissioner for the Environment (**PCE**),¹⁵ which could play a critical role in actively scanning and coordinating the management of newly emergent biosecurity threats before they escalate.
39. This is particularly relevant for monitoring the spread of *Caulerpa*, given its rapid proliferation, and the critical need for collaborative detection efforts. An emerging risk team would also be highly useful in identifying the spread of wilding pines, which significantly increase the risk of wildfires, thereby, helping in the prevention of fire hazards.

Appropriately factor environmental values into the cost-benefit analysis for pest management plans (not currently proposed)

40. As noted earlier, the Act outlines several steps and considerations for developing a pest management plan. While there is no prioritisation between considerations, the Act requires that the benefits of a plan outweigh its costs.¹⁶ This is problematic for non-economic factors, such as the intrinsic value of indigenous biodiversity.
41. A critical issue to address is how the biosecurity system provides for indigenous biodiversity and assesses when action is necessary and appropriate. Under current settings there is a lack of guidance in this area, the cost-benefit analysis is far more complex and as a result building a strong financial case for protecting native flora and fauna is particularly challenging.¹⁷
42. This limitation also means that insufficient information about an organism's impact on the environment can delay emergency responses until substantial damage has already occurred.

¹⁴ Koolen-Bourke et al (2024) Restoring Nature: Reform of the Conservation Management System, Auckland, at 86

¹⁵ Parliamentary Commissioner for the Environment (2021), *Space invaders: A review of how New Zealand manages weeds that threaten native ecosystems*, November 2021 at 211

¹⁶ Biosecurity Act 1993, ss 62(e), 71(e), 82(e)

¹⁷ Koolen-Bourke, D et al (2024) Restoring Nature: Reform of the Conservation Management System, Auckland, at 85

43. Moreover, the Act lacks alternative tools to enable decision-makers to accurately quantify environmental effects in the same way economic effects are quantified. This is despite significant scientific evidence suggesting that non-market values (i.e. ecological enhancement) can be more than double the financial value of the material benefits that an ecosystem provides.¹⁸
44. The PCE has acknowledged this systemic gap, highlighting that when the benefits provided by native ecosystems are not monetised in a conventional cost-benefit analysis, they are often overlooked in policy decisions. The PCE has suggested adopting alternative methods to address this issue.¹⁹
45. EDS encourages exploring and implementing non-market valuation methods within the biosecurity framework, which can help provide approximations of environmental values.²⁰ Ensuring their integration into decision-making processes would help sustain and enhance environmental quality while offering stronger protection for indigenous biodiversity.
46. Tools also exist to assist decision-makers in assessing the severity of the risk and impacts posed to indigenous species by invasive species. A good example is the IUCN Environmental Impact Classification system for Alien Taxa (**Appendix 1**) which classifies impacts according to their severity, from minimal to massive concern. An organism of “massive” concern for example is described as one that could cause irreversible changes or global extinction to a taxon.

Alignment of long-term management outcomes (Proposals 52 - 54)

47. It would be valuable to develop National Policy Direction to guide the assessment of risk and the cost-impact analysis in relation to threats to indigenous biodiversity. Proposal 52 will enable additional system supports like this to be formalised so that a consistent and principled approach is set.
48. With respect to proposal 54, EDS supports retention of s 55 of the Act, including simplifying its use and giving it more ‘teeth’. EDS therefore supports proposal 54A and B. There is no point initiating a s 55 decision if the assignment does not mandate action.

Enable a bespoke funding model for indigenous biodiversity

49. Currently, the Act lacks a specific mechanism to mobilise funding for addressing biosecurity risks to indigenous biodiversity (in both terrestrial and marine environments).
50. This gap is evident in the challenges faced by the National Wilding Conifer Control Programme, which is underfunded and unable to sustain critical wilding pine control efforts. The programme is facing a \$15 million shortfall this year.²¹ Without sustained and adequate funding, native species, ecosystems and landscapes remain at risk from invasive species.

¹⁸ Yao, R. et al (2021), *A review of environmental values for New Zealand biosecurity risk assessment*, November 2021, at 6

¹⁹ Parliamentary Commissioner for the Environment (2021), *Space invaders: A review of how New Zealand manages weeds that threaten native ecosystems*, November 2021 at 151

²⁰ See more methods, Yao, R. et al (2021), *A review of environmental values for New Zealand biosecurity risk assessment*, November 2021 <https://data.bioheritage.nz/dataset/so3-he-tangata-he-taiao-he-ohanga/resource/31110c1e-b48c-4122-acd0-234780080a5d>

²¹ <https://wildingpinenetwork.org.nz/lets-finish-the-job/>

51. The responsibility for wilding control should not solely rely on taxpayers. Industries contributing to the problem (forestry companies) should play an active role in funding management, potentially through funding mechanisms like levies.
52. Biosecurity threats to indigenous species are constantly emerging, posing risks to New Zealand's unique ecosystems. EDS urges the government to establish a sustainable, long-term funding model to ensure sufficient financial resources are available for the ongoing management of biosecurity risks impacting indigenous biodiversity.
53. This funding model should include contributions from central government, regional councils and industry sectors directly or indirectly involved in the issue.

Other proposals that EDS supports

54. EDS supports proposals 7, 8, 39, 41, 42 and 70, which all strengthen the biosecurity system by enabling targeted responses to biosecurity threats while fostering better biosecurity practices. We also support the intent to empower councils with the ability to issue infringements, deterring and managing breaches more effectively and improving biosecurity outcomes at the local level.
55. With respect to proposal 9 in particular (enhancing compliance options for breach of a Controlled Area Notice (**CAN**)), this is particularly relevant in the management of *Caulerpa*. EDS also supports the rapid progression and establishment of the Clean Hull Plan, alongside the placement of CAN over all known infested areas to limit the highest risk activities effectively, as recommended by the Strategic Technical Advisory Group.

General Biosecurity Duty

56. We see merit in the introduction of a General Biosecurity Duty (Proposal 40), as it underscores the importance of shared responsibilities between the government, industry and the general public in maintaining an effective biosecurity system.
57. However, for the duty to be impactful, it must adopt an active approach that clearly defines the responsibility that each party has in preventing, minimising or eliminating biosecurity risks. To ensure its effectiveness, the duty must be legally enforceable, with penalties for non-compliance.
58. We support this approach as it has a higher likelihood to be effectively implemented, particularly if supported by tools to monitor its application and outcomes. This model is used in New South Wales, Queensland and Tasmania.²² Alternative approaches risk being purely aspirational with no tangible results.

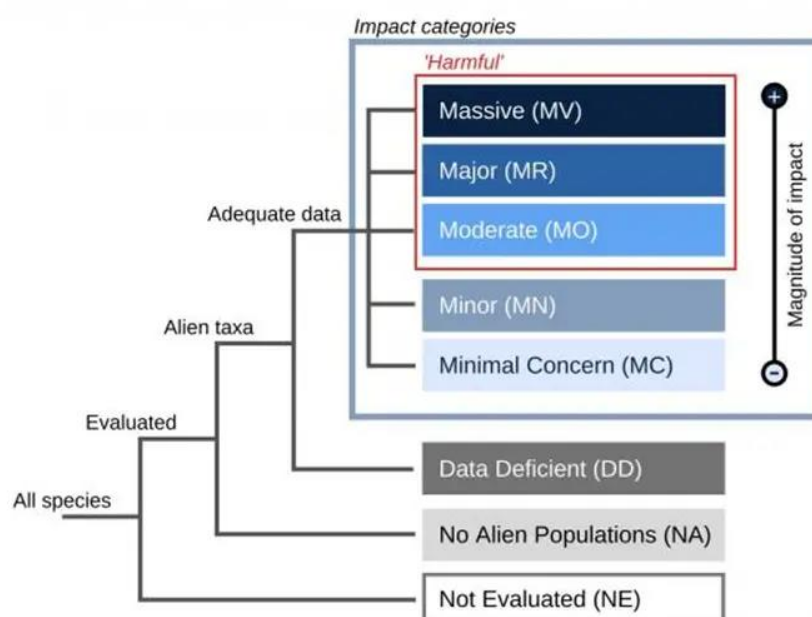
Conclusion

59. EDS supports reform of the Act, however, we consider that the proposed changes need to go further to appropriately recognise and respond to threats to indigenous biodiversity.

²² <https://nre.tas.gov.au/biosecurity-tasmania/biosecurity-act-2019/biosecurity-act-faqs>

Appendix 1

IUCN Environmental Impact Classification for Alien Taxa²³



EICAT Category	Descriptor
Minimal concern	Impacts are characterised as negligible with “no reduction in performance of individuals in the native biota”.
Minor concern	Causes reductions in the performance of individuals in the native biota, but no declines in native population sizes are evident, and there are no apparent impacts that would cause it to be classified in a higher impact category.
Moderate concern	Causes decline in population size of at least one taxon, but has not been observed to lead to local extinction of a native taxon.
Major concern	Causes community changes through the local or sub-population extinction of at least one taxon that would be naturally reversible if the alien taxon was removed. Impacts do not lead to irreversible local population, sub-population or global taxon extinction.
Massive concern	Causes naturally irreversible community changes to local, sub-population or global extinction of at least one taxon.

²³ International Union for Conservation of Nature (2020) IUCN EICAT categories and criteria: The Environmental Impact Classification for Alien Taxa, International Union for Conservation of Nature, Switzerland